nt, which go

beyond the existing requirements contained in the International Convention for the

Prevention of Pollution from Ships, 1973, as modified by the Protocol of 1978 relating thereto

as amended by the 1997 Protocol (MARPOL) and other relevant binding IMO instruments,

NOTING resolution MEPC.265(68), by which it adopted, inter alia,

MARPOL Annexes I, II, IV and V to make use of the environment-related provisions of the

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NOTING resolution MEPC.265(68), by which it adopted, inter alia,

MARPOL Annexes I, II, IV and V to make use of the environment-related provisions of the

International Code for Ships Operating in Polar Waters (Polar Code) mandatory,

NOTING ALSO that the Maritime Safety Committee, at its ninety-fourth session, adopted, by

resolution MSC.385(94), the Introduction, as it relates to safety, and parts I-A and I-B of the

Polar Code and, by resolution MSC.386(94),

make use of the safety-related provisions of the Polar Code mandatory,

HAVING CONSIDERED, at its sixty-eighth session, the draft International Code for Ships

Operating in Polar Waters,

1 ADOPTS the environment-related provisions of the Introduction, and the whole of

parts II-A and II-B of the Polar Code, the text of which is set out in the annex to the present

resolution;

2 AGREES that

safety and environmental protection shall be adopted in consultation with the Maritime Safety

Committee;

3 INVITES Parties to note that the Polar Code will take effect on 1 January 2017 upon

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safety and environmental protection shall be adopted in consultation with the Maritime Safety

Committee;

3 INVITES Parties to note that the Polar Code will take effect on 1 January 2017 upon

entry into force of the associated

4 INVITES ALSO Parties to consider the voluntary application of the Polar Code, as

far as practicable, to ships not covered by the Polar Code and operating in polar waters;

5 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL,

to transmit certified copies of the present resolution and the text of the Polar Code, contained

in the annex, to all Parties to MARPOL;

6 REQUESTS ALSO the Secretary-General to transmit copies of the present

resolution and the text of the Polar Code contained in the annex to Members of the

Organization which are not Parties to MARPOL;

7 REQUESTS FURTHER the Secretary-General to prepare a consolidated certified

text of the Polar Code.

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text of the Polar Code.
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